



Republic of the Philippines
City of Cagayan de Oro
BARANGAY BALULANG

Republic of the Philippines
OFFICE OF THE CITY COUNCIL
City of Cagayan de Oro

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OFFICE OF THE SANGGUNIANG BARANGAY

JUSTIN KYLE P. ASNE
Local Legislative Staff Officer I

**EXCERPT FROM THE MINUTES OF THE 64th REGULAR SESSION OF THE
SANGGUNIANG BARANGAY OF BALULANG, THIS CITY, HELD ON JULY 15,
2026 AT BALULANG SESSION HALL, CAGAYAN DE ORO CITY**

PRESENT:

HON. EDWIN E. MICABANI -	Punong Barangay
HON. EDWIN S. DUTERTE -	Brgy. Kagawad
HON. BOYBLO M. CARCUSA -	Brgy. Kagawad
HON. REGINALD JAY G. ACAYLAR-	Brgy. Kagawad
HON. ROCHELLE M. BATION -	Brgy. Kagawad
HON. RONIL C. ACEBES -	Brgy. Kagawad
HON. WILFREDO T. NG SR. -	Brgy. Kagawad
HON. HERVIN KENT B. PACALDO-	Brgy. Kagawad
HON. CHARLES SLADE M. PIQUERO-	SK Chairperson
ABIGAIL MAE S. SALO -	Brgy. Secretary
MARY ANN L. LAMOCHA -	Brgy. Treasurer

**PROPOSED BARANGAY ORDINANCE NO. 2026-008
Series of 2026**

**AN ORDINANCE ESTABLISHING A DRUG-FREE WORKPLACE POLICY IN
BARANGAY BALULANG AND PROVIDING GUIDELINES FOR ITS
IMPLEMENTATION IN ACCORDANCE WITH REPUBLIC ACT NO. 9165, CITY
ORDINANCE NO. 13292-2017 OTHERWISE KNOWN AS THE DRUG-FREE
WORKPLACE ORDINANCE OF 2017 AND CITY ORDINANCE NO. 14296-2022,
OTHERWISE KNOWN AS THE CAGAYAN DE ORO CITY ANTI-DRUG ABUSE
CODE OF 2022**

Be it enacted by the Sangguniang Barangay of Barangay Balulang, City of Cagayan de Oro, in session duly assembled:

SECTION 1. TITLE. - This Ordinance shall be known as the "Barangay Drug-Free Workplace Ordinance of Barangay Balulang."

SECTION 2. DECLARATION OF POLICY. - It is the declared policy of the State under Republic Act No. 9165, otherwise known as the Comprehensive Dangerous Drugs Act of 2002, to safeguard the well-being of its citizens from the harmful effects of dangerous drugs. Pursuant to this policy and consistent with the Drug-Free Workplace Ordinance of 2017 and the Cagayan de Oro Anti-Drug Abuse Code of 2022,

this Barangay commits to promoting and maintaining a drug-free workplace within its jurisdiction.

SECTION 3. DEFINITION OF TERMS. - For purposes of this Ordinance, the following terms are defined:

- a. Drug-Free Workplace – a work environment where the use, possession, sale, or influence of illegal drugs is strictly prohibited.
- b. Barangay Personnel – shall include elected officials, appointed staff, casual or job-order workers, Barangay Tanod/Oro Tanod and any other individual rendering service to the Barangay.
- c. Periodic Random Drug Testing – the unannounced and unscheduled testing of barangay personnel for prohibited drugs.
- d. Intervention Program – refers to counseling, rehabilitation, or community-based programs provided to personnel who test positive.
- e. Drug dependence - As defined by R.A. No. 9165, particularly Section 3 thereof: "it is a cluster of physiological, behavioral and cognitive phenomena of variable intensity, in which the use of psychoactive drug takes on a high priority thereby involving, among others, a strong desire or a sense of compulsion to take the substance and the difficulties in controlling substance taking behavior in terms of its onset, termination, or levels of use."

SECTION 4. COVERAGE. - This Ordinance shall apply to all elected and appointive barangay officials, including those in barangay-based institutions such as but not limited to Day Care Centers, Barangay Health Units, Barangay Peacekeeping Action Teams, and Barangay Anti-Drug Abuse Councils (BADACs).

SECTION 5. CREATION OF THE BARANGAY DRUG-FREE WORKPLACE COMMITTEE (BDFWC). - There is hereby created a Barangay Drug-Free Workplace Committee (BDFWC) composed of the following:

- a. Punong Barangay – Chairperson
- b. Barangay Kagawad on Peace and Order – Vice Chairperson
- c. Barangay Secretary – Member
- d. Barangay Treasurer – Member
- e. Representative from the BADAC – Member
- f. Health Worker or Representative from the Barangay Health Unit – Member

The Committee shall be responsible for the implementation, monitoring, and evaluation of the drug-free workplace policy.

SECTION 6. ROLE OF THE BARANGAY

- A. Guiding Role and Oversight Duty The Barangay, through the Punong Barangay and the Barangay Anti-Drug Abuse Council (BADAC), shall lead in the

dissemination, enforcement, and monitoring of the Drug-Free Workplace Policy within its jurisdiction. This includes ensuring compliance with national and local policies on the prevention and control of dangerous drugs, particularly the implementation of random drug testing in coordination with the City Anti-Drug Abuse Council (CADAC) and Oro Wellness Center.

B. Duties and Responsibilities

- a. Policy Dissemination and Orientation - The Barangay shall ensure that all elective and appointive officials, job order workers, volunteers, and contract-of-service personnel under the Barangay Government are properly oriented on the contents, implications, and implementation of the Drug-Free Workplace Ordinance. A written acknowledgment form must be signed by each individual to confirm that the policy has been read and understood.
- b. Due Process Assurance- The Barangay shall uphold and guarantee the right to due process of every official or employee subject to drug testing, in accordance with the provisions of the Civil Service Rules and applicable ordinances. No adverse action shall be taken without the observance of administrative due process.
- c. Coordination with City Offices - The Barangay shall maintain close coordination with CADAC, the Oro Wellness Center, and the PDEA-accredited drug testing facilities for the proper scheduling, logistics, and reporting related to mandatory and random drug tests.
- d. Formation of Drug-Free Workplace Committee - The Barangay shall establish a Drug-Free Workplace Committee composed of the Punong Barangay (Chair), the BADAC Focal Person, the Barangay Secretary, and one representative each from the youth, women's, and labor sectors, to assist in policy implementation and monitor compliance.
- e. Record-Keeping and Confidentiality- The Barangay shall ensure that all drug test results are strictly kept confidential and are accessible only to the Punong Barangay, the designated members of the Drug-Free Workplace Committee, and relevant personnel of CADAC.
- f. Referral and Compliance Enforcement - In cases of positive confirmatory results, the Barangay shall facilitate the timely referral of the concerned personnel to the Oro Wellness Center and monitor compliance with the rehabilitation process. The Barangay shall assist CADAC in enforcing sanctions for unjustified failure to comply.
- g. Monitoring and Reporting - The Barangay shall submit bi-annual compliance reports to CADAC detailing the number of orientations conducted, random tests facilitated, and rehabilitation referrals made, ensuring transparency and accountability in the implementation of the policy.

SECTION 7. WORK PLACE DRUG TESTING.

- a. Pre-Employment Drug Testing - All applicants for employment, appointment, or service under the Barangay Government, regardless of employment status—whether for appointive positions, contractual engagements, job orders, or community-based work programs such as cash-for-work—shall be required to undergo mandatory drug testing as a condition precedent to entry into service.

Any applicant who tests positive for the use of dangerous drugs or regulated substances, as confirmed by an accredited testing facility, shall be disqualified from entry into service with the Barangay Government.

- b. Mandatory Drug Testing of Incumbent Barangay Officials and Employees

Upon effectivity of this Ordinance, the Barangay Government, through its Barangay Anti-Drug Abuse Council (BADAC), shall implement a mandatory, random, and suspicion-less drug testing program for all incumbent Barangay Elected Officials (BEOs), appointed officials, staff, and personnel engaged under job order, contractual, or service-based arrangements. This program shall serve as a condition for continued retention and service in the Barangay Government.

Subsequent random drug testing shall be conducted at intervals not exceeding two (2) years, subject to guidelines to be issued by BADAC, taking into consideration available funding, logistical capacity, and the nature of duties of barangay personnel.

- c. Circumstances Warranting Mandatory Drug Testing

In addition to periodic random testing, mandatory drug testing shall be conducted under the following circumstances:

- a. High-Risk or Decision-Making Positions. - Employees or officials occupying sensitive positions that involve fiscal management, policy direction, security oversight, or access to vulnerable populations (e.g., youth, PWDs) shall be prioritized for mandatory testing.
- b. Discovery of Drug Paraphernalia. - The discovery, whether within barangay premises or attributable to an official/employee, of paraphernalia associated with the use of dangerous drugs (e.g., pipes, syringes, rolling papers, etc.) shall trigger mandatory testing of the concerned personnel.
- c. Arrest or Charges for Drug-Related Offenses. - Barangay personnel who have been detained by law enforcement or charged before the prosecutor's office or courts for drug-related offenses shall undergo immediate drug testing.

- d. Eligibility for Promotion or Reassignment. - Drug testing shall be a requirement prior to the promotion or reassignment of any barangay employee to a position of higher trust or greater responsibility.
- e. Return to Work After Rehabilitation. - Officials or personnel who have undergone treatment or rehabilitation, whether voluntarily or under this Ordinance, shall be subject to mandatory drug testing prior to resuming official duties.

SECTION 8. GUIDING PRINCIPLES AND PROCEDURES OF DRUG TESTING.

- a. Drug testing shall only be conducted by a government drug testing laboratory or a laboratory duly accredited by the Department of Health (DOH).
- b. All public officials and employees of the Barangay selected for testing shall accomplish a Chain of Custody Form, Consent Form and/or Waiver, to be submitted before specimen collection.
- c. Specimen collection must be done in an area where tampering or adulteration is not possible. All specimen bottles must be properly labeled and sealed in the presence of the concerned personnel.
- d. Any specimen with a positive result in the initial screening test shall be automatically subjected to confirmatory testing within the same day. The concerned personnel is given no more than five (5) days to challenge the positive result.
- e. The Barangay Drug-Free Workplace Program shall ensure that random drug testing is conducted periodically. The frequency shall be determined by the Barangay Anti-Drug Abuse Council (BADAC), in coordination with the CADAC, taking into account:
 - i. Number of barangay personnel
 - ii. Nature of work
 - iii. Available funds and logistics
 - iv. Risk assessments
 - v. Job Order or Contract of Service workers shall likewise be included in the testing, provided the policy is reflected in their contract and in the Barangay Drug-Free Workplace Program.
 - vi. All drug test results shall be strictly confidential. Only the Punong Barangay as BADAC Chairperson, and designated Assessment Team shall have access to said results.
- f. Negative Result.- In case the result of the confirmatory drug test is negative, no further action shall be undertaken. The record shall be filed confidentially and shall not be used against the concerned barangay official or personnel.

- g. Positive Result. - If the confirmatory drug test yields a positive result, the Punong Barangay shall be immediately informed in writing by the authorized drug testing facility. The Punong Barangay shall notify the concerned official or personnel within five (5) working days from receipt of the results.
- h. Reporting Period.- The concerned official or personnel shall report to the designated treatment facility within fifteen (15) days from receipt of the confirmatory result. Failure to report within said period without valid justification shall constitute an act of serious misconduct, warranting the filing of an administrative complaint.
- i. Challenge to the Confirmatory Test. - The barangay official or personnel has the right to challenge the result of the confirmatory test. The barangay official or personnel shall have fifteen (15) days from receipt of notice to challenge the result of the confirmatory test. A letter of challenge addressed to the Punong Barangay and endorsed to the City Anti-Drug Abuse Council (CADAC) through the Oro Wellness Center shall be required.
- j. Challenge Procedure and Cost. - The challenge shall be conducted using the same specimen, to be tested by a DOH-accredited drug testing laboratory. The cost of the challenge test shall be borne by the concerned barangay official or personnel. If the result of the challenge test confirms the initial positive finding, it shall be considered final.

Failure to file a challenge within the prescribed period shall make a positive drug test result from the confirmatory drug test final.

- k. Referral for Community-Based Intervention. - If the positive result is not challenged, the Barangay Anti-Drug Abuse Council (BADAC) shall refer the concerned individual to the City Government's designated facility, such as the Oro Wellness Center or a DOH-accredited community-based rehabilitation program. The referral and intervention process shall be in accordance with Dangerous Drugs Board (DDB) Board Regulation No. 7, Series of 2019 (Consolidated Revised Rules Governing Access to Treatment and Rehabilitation Programs and Services).
- l. Confidentiality of Records. - All drug test results, records of referral, challenge letters, and rehabilitation documents shall be strictly confidential. These shall be filed in the 201 file of the individual and shall not be disclosed except when required by court order or official investigation.

SECTION 9. TREATMENT, REHABILITATION, AND REFERRAL OF BARANGAY OFFICIALS OR EMPLOYEES WHO USE DRUGS

- a. General Policy - All barangay officials and employees who test positive for dangerous drug use, hereinafter referred to as Persons Who Use Drugs (PWUDs), shall be subjected to the appropriate screening, intervention,

treatment, rehabilitation, and aftercare process in accordance with Dangerous Drugs Board (DDB) Board Regulation No. 7, Series of 2019, otherwise known as the Consolidated Revised Rules Governing Access to Treatment and Rehabilitation Programs and Services.

- b. Cost of Rehabilitation and Authorized Leave. - The full cost of treatment and rehabilitation shall be borne by the concerned PWUD. The period of absence due to rehabilitation shall be deemed as authorized leave without pay, without prejudice to subsequent administrative liability for non-completion of rehabilitation.

SECTION 10. SCREENING, REFERRAL, AND CASE MANAGEMENT

- a. Execution of Undertaking - Within five (5) days from receipt of a final positive confirmatory test result or lapse of the challenge period, the PWUD shall be required to execute an Affidavit of Undertaking and Waiver, authorizing the conduct of screening and assessment by designated personnel.
- b. Intake Interview and Risk Assessment - An intake interview shall be conducted by a trained healthcare or para-medical professional to assess the following:
 - i. Risk of substance use disorder;
 - ii. Risk of psychiatric or medical comorbidity;
 - iii. Risk of harm to self, others, or the community.
- c. Screening Tools - The following tools shall be used to determine the severity of drug use:
 - i. ASSIST (Alcohol, Smoking and Substance Involvement Screening Test);
 - ii. WHO Self-Reporting Questionnaire (SRQ) for mental health assessment;
 - iii. Other internationally accepted tools, as deemed necessary by the assessor.

SECTION 11. AFTERCARE, RETURN TO WORK, AND CLEARANCE - Upon successful rehabilitation, the PWUD must secure:

- a. A Certificate of Completion of the intervention or rehab program;
- b. A Medical Clearance from the attending physician or health professional.

Without these documents, the PWUD shall not be allowed to resume official barangay duties or receive work assignments.

The PWUD shall also participate in aftercare and monitoring sessions, as determined by the Oro Wellness Center or appropriate City agency.

Following return to work, the Barangay Disciplinary Committee shall, in consultation with the rehabilitation center, evaluate the PWUD's status and determine fitness for continued employment.

SECTION 12. NON-COMPLIANCE AND ADMINISTRATIVE LIABILITY - Barangay officials and employees shall be held administratively liable under the following circumstances:

a. First Offense

a.1. Any public official or employee found positive for drug use at the first instance shall be required to undergo a mandatory rehabilitation or counseling program depending on the severity of drug use.

a.2. Any elective public officer who refuses, without any valid reason, to submit himself/herself to authorize drug testing, or is found positive for drug use after the conduct of a confirmatory test in an authorized drug testing activity shall be subjected to disciplinary action for misconduct in office pursuant to Section 60 of the Local Government Code and Article 124 (3) of the Implementing Rules and Regulations of the Local Government Code.

b. Second Offense

b.1. However, any public official or employee found positive for drug use with the following grounds will be formally charged with the administrative offense of Grave Misconduct:

b.1.1. Failure to notify the Punong Barangay for submission to rehabilitation within fifteen (15) calendar days upon receipt of notice;

b.1.2. Refusal to undergo rehabilitation or counseling program despite confirmed positive result;

b.1.3. Refusal to execute an Affidavit of Undertaking;

b.1.4. Relapse during rehabilitation or aftercare and;

b.1.5. Tampering of test results or interference in the testing process.

The Philippine Drug Enforcement Agency shall cause the filing of cases for the National Government Agencies while the Department of Interior and Local Government shall cause the filing of cases for the local government units concerned.

SECTION 13. CONFIDENTIALITY AND DATA SHARING - All information related to drug test results, screening, intervention, and treatment of barangay officials and employees shall be treated as strictly confidential under R.A. No. 10173 (Data Privacy Act of 2012). Disclosure shall only be allowed:

a. When required by court order;

b. When necessary for public health and safety;

c. With the written consent of the PWUD.

d. No information shall be shared with other agencies unless a Data Sharing Agreement is in place.

SECTION 14. POLICY ORIENTATION, ADVOCACY, EDUCATION, AND TRAINING

- a. Policy Declaration. — The Barangay recognizes the imperative of proactive education and awareness in combating the menace of dangerous drugs. It shall institutionalize a continuing advocacy, education, and training program for all Barangay Officials and Personnel, including Job Order Workers and volunteers under barangay programs.
- b. Conduct of Orientation and Education Activities. — The Barangay Administrator or its equivalent personnel designated by the Punong Barangay shall conduct regular orientation and reorientation sessions to disseminate the contents of this Drug-Free Workplace Ordinance.
- c. These orientation activities shall be administered:
 - i. Upon assumption to office or commencement of service for all newly-hired barangay personnel and volunteers;
 - ii. Annually for incumbent officials and staff; and
 - iii. As necessary upon the issuance of relevant policy updates or amendments.

The orientation shall include, but not be limited to, the following:

- a. A copy of the written Barangay Drug-Free Workplace Policy;
- b. Explanation of prohibited conduct and applicable sanctions under this Ordinance;
- c. Acknowledgment form certifying that the personnel has received, read, and understood the Drug-Free Workplace Policy;
- d. Salient Provisions of Republic Act No. 9165 (Comprehensive Dangerous Drugs Act of 2002);
- e. Education on the adverse effects of illegal drug use on health, family, workplace, and community;
- f. Preventive measures against drug abuse;
- g. Procedures for intervention and access to treatment, support, and rehabilitation services.

SECTION 10. ALLOCATION OF FUNDS. - Funds necessary for the initial implementation of this Ordinance shall be reflected in the BADAC Plan of Action and shall be charged against the BADAC Fund or any available funds, subject to accounting and auditing rules.

SECTION 11. REFERRAL TO CITY AUTHORITIES. - Any person found to have committed any of the prohibited acts enumerated in the preceding section shall be referred to the City Anti-Drug Abuse Council (CADAC) for further investigation and appropriate action.

Such referral shall be without prejudice to the filing of administrative, civil, or criminal cases under existing laws, including but not limited to Republic Act No. 9165, otherwise known as the "Comprehensive Dangerous Drugs Act of 2002," and other applicable ordinances and regulations.

The Barangay Anti-Drug Abuse Council (BADAC) shall coordinate with the CADAC, concerned law enforcement agencies, and the appropriate offices for the proper handling, documentation, and monitoring of such cases.

SECTION 12. SUPPLEMENTAL SUPPORT FROM THE CITY. - Barangays may apply for financial grants under the City Ordinance No. 15152 - 2005 otherwise known as The Barangay Anti-Drug Abuse Council Empowerment Ordinance administered by CADAC. The City shall establish a process whereby barangays can submit proposals for financial support aligned with drug-prevention, rehabilitation, or reintegration projects.

SECTION 13. REPORTING AND MONITORING. - The BDFWC shall submit bi-annual reports to CADAC detailing program implementation, compliance, and outcomes. CADAC may audit the performance of the barangay through its TWG per Pillar.

SECTION 14. SEPARABILITY CLAUSE. - If any provision of this Ordinance is declared invalid, the remaining provisions shall not be affected and shall continue to be in full force and effect.

SECTION 15. EFFECTIVITY. - This Ordinance shall take effect immediately upon approval and compliance with publication and posting requirements under the Local Government Code of 1991.

ENACTED this 15th day of JULY, 2026 at Barangay Balulang, City of Cagayan de Oro.

UNANIMOUSLY APPROVED.

I hereby certify that the foregoing ordinance was duly enacted by the Sangguniang Barangay of Barangay Balulang during its 64th Regular Session on July 15, 2026 at Barangay Balulang, Cagayan de Oro City.

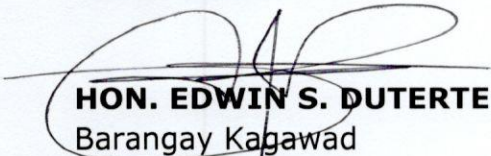
ABIGAIL MAE S. SALO

Barangay Secretary, Sangguniang Barangay

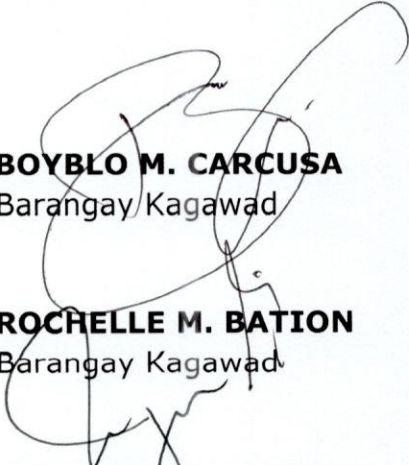
ATTESTED AND CERTIFIED
TO BE DULY ENACTED:

HON. EDWIN E. MICABANI
Punong Barangay

APPROVED:

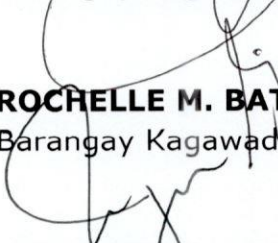


HON. EDWIN S. DUTERTE
Barangay Kagawad

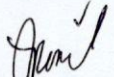


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HON. REGINALD JAY G. ACAYLAR
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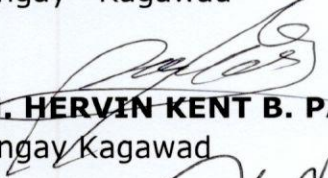
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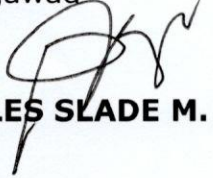
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Barangay Kagawad



HON. CHARLES SLADE M. PIQUERO
SK Chairman

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